

Court No. - 40

Case :- WRIT - C No. - 21025 of 2023

Petitioner :- Raja Gupta @ Raja Babu Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Rajesh Kumar Yadav

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard Sri Rajesh Kumar Yadav, learned counsel for the petitioner; learned Standing Counsel for the State respondent no.1 and Sri Baleshwar Chaturvedi, learned counsel for the electricity department.

2. Present writ petition is preferred with request to issue direction to the Executive Engineer, Electricity Distribution Division, Debai, District Bulandshahar (second respondent) to consider the grievance of the petitioner and correct the electricity bills of the petitioner. Further request is made to issue direction to the third respondent to accept the current electricity dues according to meter reading month to month basis after excluding the previous disputed electricity bills.

3. Learned counsel for the petitioner submits that the petitioner is resident of Village Karam Dharam Narora, Khader Napp, Tehsil Debai, District Bulandshahr. He has taken a 3 KW Electricity connection for domestic purpose but later on, it was changed for commercial purpose. The petitioner has made a complaint before the third respondent but nothing has been done in the matter. Again he has made a complaint before the second respondent on 07.2.2023 for redressal of his grievance, which is still pending.

4. Learned counsel for the electricity department submits that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained Act. The petitioner can pursue the remedy as is available to him under the Electricity Act, 2003 read with provisions of U.P. Electricity Code, 2005.

5. No useful purpose would be served in keeping the writ petition pending.

6. In view of above, without expressing any opinion on the merits of the issue and considering the facts and circumstances of the case and with the consent of parties, this writ petition is disposed of finally with a direction to the respondent nos.2 and 3 to look into the grievance of the petitioner and redress the same within a period of ten days from today from the date of production of a certified copy of this order before him.

Order Date :- 3.7.2023 RKP